

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION**

**BOARD ORDER NO. 6-01-55
WDID NO. 6B150103001**

REVISED WASTE DISCHARGE REQUIREMENTS

FOR

DESERT LAKE COMMUNITY SERVICES DISTRICT

Kern County

The California Regional Water Quality Control Board, Lahontan Region (Regional Board) finds:

1. Discharger

Desert Lake Community Services District submitted a complete Report of Waste Discharge on May 25, 2001. For the purposes of this Regional Board Order (Order), the Desert Lake Community Services District is referred to as the "Discharger."

2. Facility

The Discharger collects, treats, and disposes of an average of 0.05 million gallons per day (mgd) of domestic wastewater which originates from the Community of Desert Lakes. This community has a population of approximately 650 people. Treatment and disposal of wastewater is provided by unlined oxidation/percolation ponds.

3. Permit History

The Regional Board previously established Waste Discharge Requirements (WDRs) for the Facility under Board Order No. 6-58-10, adopted on June 26, 1958. Waste Discharge Requirements were revised under Board Order No. 6-74-95, adopted September 26, 1974, and Board Order No. 6-84-32, adopted March 8, 1984.

4. Reason for Action

The Regional Board is revising these WDRs as part of a statewide program to update backlogged WDRs, include current regulatory requirements and policies, and incorporate changes in the monitoring program.

5. Facility Location

The Discharger's treatment facility is located 2.5 miles (4.0 km) west of the community of Boron. The treatment and disposal facilities are located in the North Muroc Subunit of the Antelope Hydrologic Unit within the NE/4, Section 34, T11N, R8W, SBB&M as shown on Attachment "A", which is made a part of this Order.

6. Description of Facility and Discharge

The district currently has two small oxidation/percolation ponds and two larger ponds. Total surface area for the ponds is approximately 13 acres (5.3 hectares). The treatment and disposal capacity of the ponds is 0.2 mgd (0.76 megaliters /day). Influent wastewater is pumped to the oxidation/percolation ponds by an air-lift pump station with a capacity of 0.14 mgd (0.53 magaliters/day). A second air-lift pump with the same capacity is used as a backup.

7. Authorized Disposal Sites

The oxidation/percolation ponds are the only designated disposal sites. The designated disposal site is located on land owned by the Discharger.

8. Site Geology

The disposal site is underlain by Quaternary alluvium, which consists of gravel, sand, silt, and clay. Soils in the area consist of loamy sand, sandy loam, and clay loam. The Facility is located on the Mojave Block, which is bound to the northwest by the Garlock Fault (Western Segment) Zone and to the south by the San Andreas Fault Zone.

9. Site Hydrology

Available measurements of ground water depth range from 160 feet to 270 feet. The disposal site is in the North Muroc Subunit, where ground waters are commonly marginal or unfit for domestic use due to high dissolved solids concentrations.

10. Receiving Water

The ground waters of the North Muroc Subunit of the Antelope Hydrologic Unit are the receiving waters.

11. Lahontan Basin Plan

The Regional Board adopted the Water Quality Control Plan for the Lahontan Region (Basin Plan) which became effective on March 31, 1995. This Order implements the Basin Plan, as amended.

12. Ground Water Beneficial Uses

The beneficial uses of ground waters of the North Muroc Subunit of the Antelope Hydrologic Unit as set forth and defined in the plan are:

- a. municipal and domestic supply;
- b. agricultural supply;
- c. industrial service; and
- d. freshwater replenishment.

13. California Environmental Quality Act (CEQA) Compliance

These WDRs govern an existing Facility. The project is therefore categorically exempt from the provisions of the CEQA (Public Resources Code, Section 21000 et seq.) in accordance with Section 15301 of the CEQA Guidelines.

14. Notification of Interested Parties

The Board has notified the Discharger and interested agencies and persons of its intent to revise WDRs for this discharge.

15. Consideration of Comments

The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that the Discharger shall comply with the following:

I. DISCHARGE SPECIFICATIONS

A. Effluent/Discharge Limitations

1. The total flow of wastewater to the treatment and disposal facilities during a 24-hour period shall not exceed 0.14 million gallons (0.53 megaliters).
2. The discharge of wastewater except to the authorized disposal sites is prohibited.
3. The discharge to waters of the State shall not contain substances in concentrations that are toxic to, or produce detrimental physiological responses in humans, plants, animals, or aquatic life.

B. Receiving Water Limitations

This discharge shall not cause a violation of any applicable water quality standards for receiving water adopted by the Regional Board or the State Water Resources Control Board (SWRCB). Discharges from this facility shall not cause the presence of the following substances or conditions in ground waters of the North Muroc Subunit of the Antelope Hydrologic Unit.

1. Bacteria, Coliform – In ground water, the median concentration of coliform organisms over any seven-day period shall be less than 1.1/100 millimeters.
2. Chemical Constituents – Ground waters shall not contain concentrations of chemical constituents in excess of the maximum contaminant level (MCL) or secondary maximum contaminant level (SMCL) based on drinking water standards specified in Title 22, California Code of Regulations (CCR).

Waters designated as Agricultural Supply shall not contain concentrations of chemical constituents in amounts that adversely affect the water for beneficial uses (i.e., agricultural purposes).

Ground waters shall not contain concentrations of chemical constituents that adversely affect the water for beneficial uses.

3. Radioactivity – Waters shall not contain concentrations of radionuclides in excess of limits specified in Title 22, of the CCR, Chapter 15, Article 5, Section 64443.
4. Taste and Odors – Ground waters shall not contain taste or odor-producing substances in concentrations that cause nuisance or that adversely affect beneficial uses. Ground waters shall not exceed the adopted secondary maximum contaminant level specified in Title 22, of the CCR.

C. General Requirements and Prohibitions

1. The discharge of waste in violation of any narrative Water Quality Objective (WQO) contained in the Basin Plan, including the Nondegradation Objective, is prohibited.
2. The discharge of waste that causes a violation of any numeric WQO contained in the Basin Plan is prohibited.
3. Where any numeric or narrative WQO contained in the Basin Plan is already being violated, the discharge of waste that causes further degradation or pollution is prohibited.
4. Surface flow or visible discharge of wastewater from the disposal sites to adjacent land areas or surface waters is prohibited.
5. The discharge shall not cause pollution as defined by Section 13050 (l) of the California Water Code (CWC) or a threatened pollution.
6. The discharge shall not cause a nuisance as defined in Section 13050 (m) of the CWC.
7. Any discharge, bypass, or diversion of raw or partially treated sewage, sewage sludge, grease, or oils from the collection or oxidation/percolation ponds to adjacent land areas or surface waters is prohibited.
8. Any discharge outside the permitted oxidation/percolation ponds due to overflow, washout, inundation, structural damage, or a significant reduction in efficiency resulting from storm or flood having a recurrence interval of less than once in 100 years is prohibited.

9. The vertical distance between the liquid surface elevation and the lowest point of a pond dike or the invert of an overflow structure shall not be less than 2.0 feet.

II. PROVISIONS

A. Rescission of Waste Discharge Requirements

Board Order No. 6-84-32 is hereby rescinded.

B. Monitoring and Reporting

The Discharger shall comply with Monitoring and Reporting Program No. 01-55 and the General Provisions for Monitoring and Reporting dated September 1, 1994, as specified by the Executive Officer, which is made part of this Order.

C. Standard Provisions

The Discharger shall comply with the "Standard Provisions for WDRs", dated September 1, 1994, in Attachment "B", which is made part of this Order.

D. Other Provisions

1. The Discharger shall immediately notify the Regional Board by telephone within 24 hours whenever an adverse condition occurs as a result of this discharge; written confirmation shall follow within two weeks of the adverse condition. An adverse condition includes, but is not limited to, a serious violation or a serious threatened violation of waste discharge requirements, significant spills of wastewater, or serious damage to control facilities that could affect compliance.
2. Any proposed material change in the character of the waste, manner or method of treatment or disposal, increase of discharge, or location of discharge shall be reported to the Regional Board at least 120 days in advance of implementation of any such proposal.
3. Prior to **December 1, 2002**, the Discharger shall submit to the Regional Board a revised Sampling and Monitoring Plan, including four hexavalent and total chromium sampling events (two at the end of separate dry seasons and two at the end of separate wet seasons) and report the results in the **4th Quarter 2003 and 2004** Quarterly Reports.
4. The California Regional Water Quality Control Board, Lahontan Region, hereby reserves the privilege of changing all or any portion of this Order upon legal notice to, and after opportunity to be heard is given, to all concerned parties.

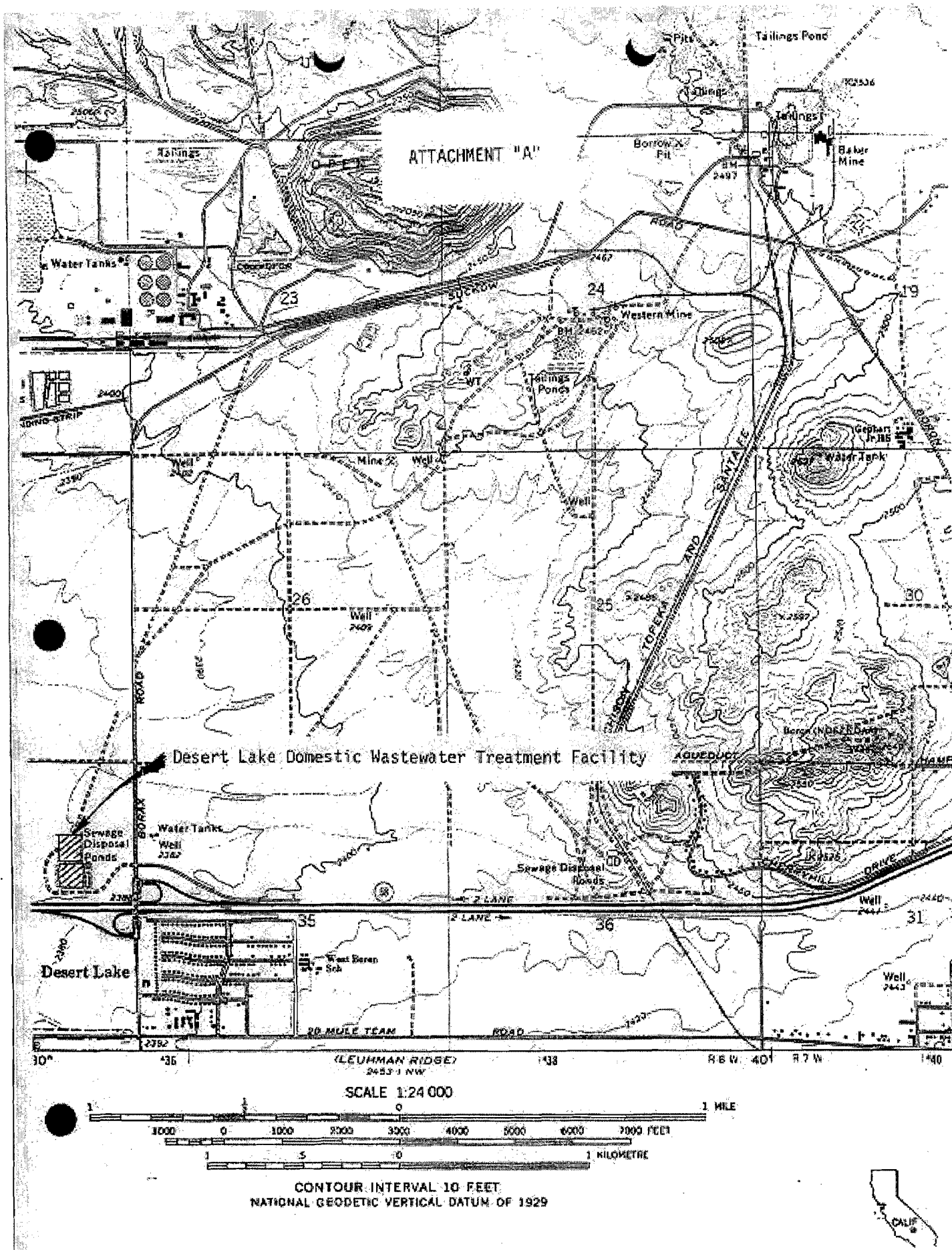
5. "Surface waters", as used in this Order, include, but are not limited to, live streams, either perennial or ephemeral, which flow in natural or artificial water courses and natural lakes and artificial impoundment's of waters.
6. "Ground waters", as used in this Order, include, but are not limited to, all subsurface waters being above atmospheric pressure and the capillary fringe of these waters.
7. The Discharger's wastewater treatment plant shall be supervised by persons possessing a wastewater treatment plant operator certificate of appropriate grade pursuant to Section 2465, Title 23, CCR.
8. A copy of this Order and the Monitoring and Reporting Program shall be available at all times at the treatment plant for immediate reference by the plant operator.
9. The owner of property subject to these WDRs shall be considered to have a continuing responsibility for ensuring compliance with applicable WDRs in the operation or use of the owned property. Any change in the ownership and/or operation of property subject to WDRs shall be reported to this Regional Board. Notification of applicable WDRs shall be furnished the new owner(s) and/or operator(s). A copy of such notification shall be sent to this Regional Board.

I, Harold J. Singer, Executive Officer, do hereby certify that the foregoing is a full, true and correct copy of an Order adopted by the California Regional Water Quality Control Board, Lahontan Region, on October 10, 2001.



HAROLD J. SINGER
EXECUTIVE OFFICER

Attachments: A. Site Locations Map
B. Standard Provisions for WDRs



CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD

STANDARD PROVISIONS FOR WASTE DISCHARGE REQUIREMENTS

ATTACHMENT B

1. Inspection and Entry

The Discharger shall permit Regional Board staff:

- a. to enter upon premises in which an effluent source is located or in which any required records are kept;
- b. to copy any records relating to the discharge or relating to compliance with the Waste Discharge Requirements;
- c. to inspect monitoring equipment or records; and
- d. to sample any discharge.

2. Reporting Requirements

- a. Pursuant to California Water Code 13267(b), the Discharger shall immediately notify the Regional Board by telephone whenever an adverse condition occurred as a result of this discharge; written confirmation shall follow within two weeks. An adverse condition includes, but is not limited to, spills of petroleum products or toxic chemicals, or damage to control facilities that could affect compliance.
- b. Pursuant to California Water Code Section 13260(c), any proposed material change in the character of the waste, manner or method of treatment or disposal, increase of discharge, or location of discharge, shall be reported to the Regional Board at least 120 days in advance of implementation of any such proposal. This shall include, but not limited to, all significant soil disturbances.
- c. The Owners/Discharger of property subject to Waste Discharge Requirements shall be considered to have a continuing responsibility for ensuring compliance with applicable Waste Discharge Requirements in the operations or use of the owned property. Pursuant to California Water Code Section 13260(c), any change in the ownership and/or operation of property subject to the Waste Discharge Requirements shall be reported to the Regional Board. Notification of applicable Waste Discharge Requirements shall be furnished in writing to the new owners and/or operators and a copy of such notification shall be sent to the Regional Board.
- d. If a Discharger becomes aware that any information submitted to the Regional Board is incorrect, the Discharger shall immediately notify the Regional Board, in writing and correct that information.
- e. Reports required by the Waste Discharge Requirements, and other information requested by the Regional Board, must be signed by a duly authorized representative of the Discharger. Under Section 13268 of the California Water Code, any person failing or refusing to furnish technical or monitoring reports, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in an amount of up to one thousand dollars (\$1,000) for each day of violation.

- f. If the Discharger becomes aware that their Waste Discharge Requirements (or permit) is no longer needed (because the project will not be built or the discharge will cease) the Discharger shall notify the Regional Board in writing and request that their Waste Discharge Requirements (or permit) be rescinded.

3. Right to Revise Waste Discharge Requirements

The Regional Board reserves the privilege of changing all or any portion of the Waste Discharge Requirements upon legal notice to and after opportunity to be heard is given to all concerned parties.

4. Duty to Comply

Failure to comply with the Waste Discharge Requirements may constitute a violation of the California Water Code and is grounds for enforcement action or for permit termination, revocation and reissuance, or modification.

5. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge in violation of the Waste Discharge Requirements which has a reasonable likelihood of adversely affecting human health or the environment.

6. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the Discharger to achieve compliance with the Waste Discharge Requirements. Proper operation and maintenance includes adequate laboratory control, where appropriate, and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by the Discharger, when necessary to achieve compliance with the conditions of the Waste Discharge Requirements.

7. Waste Discharge Requirement Actions

The Waste Discharge Requirements may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for waste discharge requirement modification, revocation and reissuance, termination, or a notification of planned changes or anticipated noncompliance, does not stay any of the Waste Discharge Requirements conditions.

8. Property Rights

The Waste Discharge Requirements do not convey any property rights of any sort, or any exclusive privileges, nor does it authorize any injury to private property or any invasion of personal rights, nor any infringement of federal, state or local laws or regulations.

9. Enforcement

The California Water Code provides for civil liability and criminal penalties for violations or threatened violations of the Waste Discharge Requirements including imposition of civil liability or referral to the Attorney General.

10. Availability

A copy of the Waste Discharge Requirements shall be kept and maintained by the Discharger and be available at all times to operating personnel.

11. Severability

Provisions of the Waste Discharge Requirements are severable. If any provision of the requirements is found invalid, the remainder of the requirements shall not be affected.

12. Public Access

General public access shall be effectively excluded from disposal/treatment facilities.

13. Transfers

Providing there is no material change in the operation of the facility, this Order may be transferred to a new owner or operator. The owner/operator must request the transfer in writing and receive written approval from the Regional Board's Executive Officer.

14. Definitions

- a. "Surface waters" as used in this Order, include, but are not limited to, live streams, either ~~perennial or ephemeral~~, which flow in natural or artificial water courses and natural lakes and artificial impoundments of waters. "Surface waters" does not include artificial water courses or impoundments used exclusively for wastewater disposal.
- b. "Ground waters" as used in this Order, include, but are not limited to, all subsurface waters being above atmospheric pressure and the capillary fringe of these waters.

15. Storm Protection

- a. All facilities used for collection, transport, treatment, storage, or disposal of waste shall be adequately protected against overflow, washout, inundation, structural damage or a significant reduction in efficiency resulting from a storm or flood having a recurrence interval of once in 100 years.

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION**

**REVISED MONITORING AND REPORTING PROGRAM NO. 01-55
WDID NO. 6B150103001**

FOR

DESERT LAKE COMMUNITY SERVICES DISTRICT

Kern County

I. FLOW MONITORING

The following shall be recorded:

1. The estimated flow rate of wastewater to the treatment facility calculated for each month.
2. The freeboard (vertical distance from the lowest point of a dike or invert of an overflow structure to the water surface in a pond) of each pond shall be recorded each month. If a pond does not contain wastewater, indicate that it is empty.

II. OPERATION AND MAINTENANCE

A brief summary of any operational problems and maintenance activities shall be submitted to the Regional Board with each monitoring report.

This summary shall discuss:

1. Any modifications or additions to the wastewater conveyance system, treatment facilities, or disposal facilities.
2. Any major maintenance conducted on the wastewater conveyance system, treatment facilities, or disposal facilities.
3. Any major problems occurring in the wastewater conveyance system, treatment facilities, or disposal facilities.
4. The calibration of any measuring devices.
5. The name of all treatment plant operators and their grade of certification shall be reported in the first monitoring report submitted during each year.

III. POND SAMPLING

A. Monitoring Parameters

The monitoring parameters are chromium VI and total chromium.

B. Monitoring Points

The monitoring points shall be within the oxidation/percolation ponds. The pond samples shall be collected and analyzed in a California certified laboratory. Two samples shall be collected at the end of separate dry seasons and two at the end of separate wet seasons in the years 2003 and 2004. The Discharger shall follow the Sampling and Monitoring Plan, which will be approved by Board Staff.

This plan is required from the Discharger pursuant to Board Order No. 6-01-55 and is due on **December 1, 2002**.

IV. GENERAL PROVISIONS

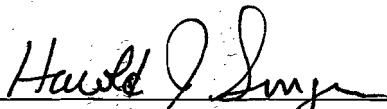
The Discharger shall comply with the "General Provisions for Monitoring and Reporting," dated September 1, 1994, which is attached to and made part of this Monitoring and Reporting Program.

V. REPORTING

A. Quarterly monitoring reports including flow monitoring and maintenance information shall be submitted to the Regional Board by the 15th day of the following quarter. The first report is due on or before **October 15, 2001**.

B. On or before **January 15, 2004** and on or before **January 15, 2005**, along with the respective quarterly report, the Discharger shall submit the results of the previous year's pond sampling analysis. The results shall be in tabular format.

Ordered by:



HAROLD J. SINGER
EXECUTIVE OFFICER

Dated: **October 10, 2001**

Attachment: General Provisions for Monitoring and Reporting

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

GENERAL PROVISIONS
FOR MONITORING AND REPORTING

1. SAMPLING AND ANALYSIS

- a. All analyses shall be performed in accordance with the current edition(s) of the following documents:
 - i. Standard Methods for the Examination of Water and Wastewater
 - ii. Methods for Chemical Analysis of Water and Wastes, EPA
- b. All analyses shall be performed in a laboratory certified to perform such analyses by the California State Department of Health Services or a laboratory approved by the Regional Board. Specific methods of analysis must be identified on each laboratory report.
- c. Any modifications to the above methods to eliminate known interferences shall be reported with the sample results. The method used shall also be reported. If methods other than USEPA approved methods or Standard Methods are used, the exact methodology must be submitted for review and must be approved by the Regional Board prior to use.
- d. The Discharger shall establish chain-of-custody procedures to ensure that specific individuals are responsible for sample integrity from commencement of sample collection through delivery to an approved laboratory. Sample collection, storage and analysis shall be conducted in accordance with an approved Sampling and Analysis Plan (SAP). The most recent version of the approved SAP shall be kept at the facility.
- e. The Discharger shall calibrate and perform maintenance procedures on all monitoring instruments and equipment to ensure accuracy of measurements, or shall ensure that both activities will be conducted. The calibration of any wastewater flow measuring device shall be recorded and maintained in the permanent log book described in 2.b, below.
- f. A grab sample is defined as an individual sample collected in fewer than 15 minutes.
- g. A composite sample is defined as a combination of no fewer than eight individual samples obtained over the specified sampling period at equal intervals. The volume of each individual sample shall be proportional to the discharge flow rate at the time of sampling. The sampling period shall equal the discharge period, or 24 hours, whichever period is shorter.

2. OPERATIONAL REQUIREMENTS

a. Sample Results

Pursuant to California Water Code Section 13267(b), the Discharger shall maintain all sampling and analytical results including: strip charts; date, exact place, and time of sampling; date analyses were performed; sample collector's name; analyst's name; analytical techniques used; and results of all analyses. Such records shall be obtained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.

b. Operational Log

Pursuant to California Water Code Section 13267(b), an operation and maintenance log shall be maintained at the facility. All monitoring and reporting data shall be recorded in a permanent log book.

3. REPORTING

- a. For every item where the requirements are not met, the Discharger shall submit a statement of the actions undertaken or proposed which will bring the discharge into full compliance with requirements at the earliest time and submit a timetable for correction.
- b. Pursuant to California Water Code Section 13267(b), all sampling shall be made available to the Regional Board upon request. Results shall be retained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.
- c. The Discharger shall provide a brief summary of any operational problems and maintenance activities to the Regional Board with each monitoring report. Any modifications or additions to, or any major maintenance conducted on, or any major problems occurring to the wastewater conveyance system, treatment facilities, or disposal facilities shall be included in this summary.
- d. Monitoring reports shall be signed by:
 - i. In the case of a corporation, by a principal executive officer at least of the level of vice-president or his duly authorized representative, if such representative is responsible for the overall operation of the facility from which the discharge originates;
 - ii. In the case of a partnership, by a general partner;

- iii. In the case of a sole proprietorship, by the proprietor;
 - iv. In the case of a municipal, state or other public facility, by either a principal executive officer, ranking elected official, or other duly authorized employee.
- e. Monitoring reports are to include the following:
- i. Name and telephone number of individual who can answer questions about the report.
 - ii. The Monitoring and Reporting Program Number.
 - iii. WDID Number.
- f. Modifications

This Monitoring and Reporting Program may be modified at the discretion of the Regional Board Executive Officer.

4. NONCOMPLIANCE

Under Section 13268 of the Water Code, any person failing or refusing to furnish technical or monitoring reports or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in an amount of up to one thousand dollars (\$1,000) for each day of violation under Section 13268 of the Water Code.